

1 AN ACT relating to KEES scholarships for students attending noncertified schools.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 164.7874 is amended to read as follows:

4 As used in KRS 164.7871 to 164.7885:

- 5 (1) "Academic term" means a semester or other time period specified in an
6 administrative regulation promulgated by the authority;
- 7 (2) "Academic year" means a period consisting of at least the minimum school term, as
8 defined in KRS 158.070;
- 9 (3) "ACT score" means the composite score achieved on the American College Test at
10 a national test site on a national test date or the college admissions examination
11 administered statewide under KRS 158.6453(5)(b)5. if the exam is the ACT, or an
12 equivalent score, as determined by the authority, on the SAT administered by the
13 College Board, Inc.;
- 14 (4) "Authority" means the Kentucky Higher Education Assistance Authority;
- 15 (5) "Award period" means the fall and spring consecutive academic terms within one
16 (1) academic year;
- 17 (6) "Council" means the Council on Postsecondary Education created under KRS
18 164.011;
- 19 (7) "Eligible high school student" means any person who:
- 20 (a) Is a citizen, national, or permanent resident of the United States and a
21 Kentucky resident;
- 22 (b) Was enrolled~~[after July 1, 1998]~~:
- 23 1. In a Kentucky high school for at least one hundred forty (140) days of
24 the minimum school term unless exempted by the authority's executive
25 director upon documentation of extreme hardship, while meeting the
26 KEES curriculum requirements, and was enrolled in a Kentucky high
27 school at the end of the academic year;

- 1 2. In a Kentucky high school for the fall academic term of the senior year
2 and who:
3 a. Was enrolled during the entire academic term;
4 b. Completed the high school's graduation requirements during the
5 fall academic term; and
6 c. Was not enrolled in a secondary school during any other academic
7 term of that academic year; or
8 3. In the Gatton Academy of Mathematics and Science in Kentucky, the
9 Craft Academy for Excellence in Science and Mathematics, or in high
10 school at a model and practice school under KRS 164.380 while meeting
11 the ~~**KEES**~~[Kentucky educational excellence scholarship] curriculum
12 requirements;
13 (c) Has a grade point average of 2.5 or above at the end of any academic year[
14 beginning after July 1, 1998], or at the end of the fall academic term for a
15 student eligible under paragraph ~~(b)2.~~[(b) 2.] of this subsection; and
16 (d) Is not a convicted felon;
17 (8) **"Eligible noncertified school student" means any person who:**
18 **(a) Is a citizen, national, or permanent resident of the United States and a**
19 **Kentucky resident;**
20 **(b) Was enrolled after June 30, 2026, in a Kentucky nonpublic secondary**
21 **school not certified by the Kentucky Board of Education for an academic**
22 **year;**
23 **(c) Is not a convicted felon; and**
24 **(d) Completes all KEES noncertified school student reporting and application**
25 **requirements set by the authority;**
26 (9) "Eligible postsecondary student" means a **person who is a** citizen, national, or
27 permanent resident of the United States and **a** Kentucky resident, as determined by

the participating institution in accordance with criteria established by the council for the purposes of admission and tuition assessment, who:

- (a) Earned a KEES award;
- (b) Has the required postsecondary GPA and credit hours required under KRS 164.7881;
- (c) Has remaining semesters of eligibility under KRS 164.7881;
- (d) Is enrolled in a participating institution as a part-time or full-time student; and
- (e) Is not a convicted felon;

(10) "Equivalent grade point average" or "equivalent GPA" means the grade point average, as calculated by the authority, that is earned by an eligible noncertified school student during one (1) year of noncertified high school as follows:

(a) The grade point average earned on all, and no less than two (2), dual credit courses taken at one (1) or more participating institutions;

(b) The grade point average resulting from the scores of all, and no less than two (2), Advanced Placement exams as described in subsection (1)(b) of Section 2 of this Act; or

(c) The grade point average resulting from a combination of all, and no less than two (2), Advanced Placement exams and dual credit courses as described in paragraphs (a) and (b) of this subsection;

(11)~~(9)~~ "Full-time student" means a student enrolled in a postsecondary program of study that meets the full-time student requirements of the participating institution in which the student is enrolled;

(12)~~(10)~~ "Grade point average" or "GPA" means the grade point average **that is** earned by an eligible student and reported by the high school or participating institution in which the student was enrolled based on a scale of 4.0 or its equivalent if the high school or participating institution that the student attends does not use the 4.0 grade scale;

1 ~~(13)~~~~(11)~~ "High school" means any Kentucky public high school, the Gatton Academy
2 of Mathematics and Science in Kentucky, the Craft Academy for Excellence in
3 Science and Mathematics, a high school of a model and practice school under KRS
4 164.380, and any private, parochial, or church school located in Kentucky that has
5 been certified by the Kentucky Board of Education as voluntarily complying with
6 curriculum, certification, and textbook standards established by the Kentucky Board
7 of Education under KRS 156.160;

8 ~~(14)~~~~(12)~~ "KEES" or "Kentucky educational excellence scholarship" means a
9 scholarship provided under KRS 164.7871 to 164.7885;

10 ~~(15)~~~~(13)~~ "KEES award" means:

11 (a) For an eligible high school student or an eligible noncertified school student,
12 the sum of the KEES base amount for each academic year of high school or
13 noncertified high school plus any KEES supplemental amount, as adjusted
14 pursuant to KRS 164.7881; and

15 (b) For a student eligible under KRS 164.7879(3)~~(d)~~~~(e)~~, the KEES supplemental
16 amount as adjusted pursuant to KRS 164.7881;

17 ~~(16)~~~~(14)~~ "KEES award maximum" means the sum of the KEES base amount earned in
18 each academic year of high school or noncertified high school plus any KEES
19 supplemental amount earned;

20 ~~(17)~~~~(15)~~ "KEES base amount" or "base amount" means the amount earned by an
21 eligible high school student based on the student's GPA, or for an eligible
22 noncertified school student the equivalent GPA, pursuant to KRS 164.7879,
23 except that a KEES base amount previously earned by an eligible high school
24 student shall not be replaced retroactively with an equivalent GPA base amount;

25 ~~(18)~~~~(16)~~ "KEES curriculum" means five (5) courses of study, except for students who
26 meet the criteria of subsection (7)(b)2. of this section, in an academic year as
27 determined in accordance with an administrative regulation promulgated by the

1 authority;

2 ~~(19)~~~~(17)~~ "KEES supplemental amount" means the amount earned by an eligible student
3 based on the student's ACT score pursuant to KRS 164.7879;

4 ~~(20)~~~~(18)~~ "KEES trust fund" means the Wallace G. Wilkinson Kentucky educational
5 excellence scholarship trust fund;

6 ~~(21)~~~~(19)~~ **"Noncertified high school" means any private, parochial, or church school**
7 **located in Kentucky that has not been certified by the Kentucky Board of**
8 **Education as voluntarily complying with curriculum, certification, and textbook**
9 **standards established by the Kentucky Board of Education under KRS 156.160;**

10 ~~(22)~~ "On track to graduate" means the number of cumulative credit hours earned as
11 compared to the number of hours determined by the postsecondary education
12 institution as necessary to complete a bachelor's degree by the end of eight (8)
13 academic terms or ten (10) academic terms if a student is enrolled in an
14 undergraduate program that requires five (5) years of study;

15 ~~(23)~~~~(20)~~ "Participating institution" means an "institution" as defined in KRS 164.001
16 that is eligible to participate in the federal Pell Grant program, executes a contract
17 with the authority on terms the authority deems necessary or appropriate for the
18 administration of its programs, and:

- 19 (a) 1. Is publicly operated;
- 20 2. Is licensed by the Commonwealth of Kentucky and has operated for at
21 least ten (10) years, offers an associate or baccalaureate degree program
22 of study not comprised solely of sectarian instruction, and admits as
23 regular students only high school graduates, recipients of a High School
24 Equivalency Diploma, or students transferring from another accredited
25 degree granting institution; or
- 26 3. Is designated by the authority as an approved out-of-state institution that
27 offers a degree program in a field of study that is not offered at any

1 institution in the Commonwealth; and

2 (b) Continues to commit financial resources to student financial assistance
3 programs; and

4 ~~(24)~~~~[(21)]~~ "Part-time student" means a student enrolled in a postsecondary program of
5 study who does not meet the full-time student requirements of the participating
6 institution in which the student is enrolled and who is enrolled for at least six (6)
7 credit hours, or the equivalent for an institution that does not use credit hours.

8 ➔Section 2. KRS 164.7879 is amended to read as follows:

9 (1) (a) Kentucky educational excellence scholarship awards shall be based upon an
10 established base scholarship amount and an eligible high school student's
11 grade point average, or for an eligible noncertified school student the
12 equivalent grade point average. The base scholarship amount for students
13 attaining a grade point average of at least 2.5, or an equivalent GPA of at
14 least 2.5 beginning with the 2026-2027 academic year, ~~for the 1998-1999~~
15 ~~academic year~~ shall be as follows:

16	GPA	Amount	GPA	Amount
17	2.50	\$125.00	3.30	\$325.00
18	2.60	\$150.00	3.40	\$350.00
19	2.70	\$175.00	3.50	\$375.00
20	2.75	\$187.00	3.60	\$400.00
21	2.80	\$200.00	3.70	\$425.00
22	2.90	\$225.00	3.75	\$437.00
23	3.00	\$250.00	3.80	\$450.00
24	3.10	\$275.00	3.90	\$475.00
25	3.20	\$300.00	4.00	\$500.00
26	3.25	\$312.00		

27 The authority shall review the base amount of the Kentucky educational

excellence scholarship each academic year and may promulgate an administrative regulation to make adjustments after considering the availability of funds.

(b) For an eligible noncertified school student, the Advanced Placement exam to GPA conversion values are as follows:

<u>AP Exam</u>	<u>GPA</u>
<u>1</u>	<u>0.00</u>
<u>2</u>	<u>1.00</u>
<u>3</u>	<u>2.50</u>
<u>4</u>	<u>3.00</u>
<u>5</u>	<u>4.00</u>

(2) (a) **1.** The authority shall commit to provide **the base amount of the Kentucky educational excellence scholarship** to:

a. Each eligible high school student ~~{the base amount of the Kentucky educational excellence scholarship}~~ for each academic year of high school study in the **KEES** ~~[Kentucky educational excellence scholarship]~~ curriculum that the high school student has attained at least a 2.5 grade point average; **and**

b. **Each eligible noncertified school student for each academic year of noncertified high school study that the student has attained at least a 2.5 equivalent grade point average.**

2. The award shall be based upon the eligible high school student's grade point average **or the eligible noncertified school student's equivalent GPA**, at the close of each academic year. An award attributable to a past academic year shall not be increased after the award has been earned by an eligible high school student **or eligible noncertified school student**, regardless of any subsequent increases made to the base amount of the

1 Kentucky educational excellence scholarship through the promulgation
2 of an administrative regulation by the authority.

3 (b) Notwithstanding the definitions of "eligible high school student" and "high
4 school" in KRS 164.7874, any high school student who maintains Kentucky
5 residency and completes the academic courses that are required for a
6 Kentucky educational excellence scholarship while participating in an
7 approved educational high school foreign exchange program or participating
8 in the United States Congressional Page School may apply his or her grade
9 point average for that academic year toward the base as described in
10 paragraph (a) of this subsection. The grade point average shall be reported by
11 the student's Kentucky home high school, based on an official transcript from
12 the school that the student attended during the out-of-state educational
13 experience. The authority shall promulgate administrative regulations that
14 describe the approval process for the educational exchange programs that
15 qualify under this paragraph. The provisions in this paragraph shall likewise
16 apply to any Kentucky high school student who participated in an approved
17 educational exchange program or in a Congressional Page School~~since the~~
18 ~~1998-99 school year~~ and maintained his or her Kentucky residency
19 throughout.

20 (c) 1. Notwithstanding the definitions of "eligible high school student" and
21 "high school" in KRS 164.7874 and the requirement that a student
22 graduate from a Kentucky high school, a high school student who
23 completes the KEES curriculum while attending an accredited out-of-
24 state high school or Department of Defense school may apply the grade
25 point average for any applicable academic year toward the base as
26 described in paragraph (a) of this subsection and shall also qualify for a
27 supplemental award under subsection (3) of this section when:

- 1 a. His or her custodial parent or guardian is in active service of the
2 Armed Forces of the United States;
- 3 b. The student attended an accredited out-of-state high school or a
4 Department of Defense school as a result of the custodial parent's
5 or guardian's military transfer outside of Kentucky; and
- 6 c. The student earned a KEES base amount at a Kentucky high
7 school prior to the custodial parent's or guardian's military transfer
8 outside of Kentucky.
- 9 2. The student or parent shall arrange for the out-of-state school to report
10 the student's grade point average each academic year and the student's
11 highest ACT score to the authority as required under KRS 164.7885.
12 The authority shall promulgate administrative regulations implementing
13 the requirements in this paragraph, including:
- 14 a. The documentation that the parent shall submit to the authority
15 establishing the student's eligibility for the scholarship; and
- 16 b. The assurances that an out-of-state institution shall submit to the
17 authority for submission of the student grade point average.
- 18 3. The provisions in this paragraph shall apply to the 2001-2002 school
19 year and thereafter.
- 20 (d) **An eligible high school** ~~Beginning with the 2013-2014 academic year, a~~
21 student who meets the Kentucky core academic standards for high school
22 graduation established in administrative regulation and graduates after
23 completing three (3) years of high school shall receive a Kentucky
24 educational excellence scholarship award equivalent to completing high
25 school in four (4) years. The award shall be determined by dividing the total
26 actual KEES scholarship earned under subsection (1) of this section by three
27 (3) and multiplying that number by four (4). The resulting number shall be the

1 annual award the student is eligible for under subsection (1) of this section.

2 (3) (a) ~~{The authority shall commit to provide to each eligible high school student~~
 3 ~~graduating from high school before June 30, 1999, and achieving a score of at~~
 4 ~~least 15 on the American College Test, a supplemental award for the award~~
 5 ~~period beginning in the fall of 1999, based on the eligible high school~~
 6 ~~student's highest ACT score attained by the date of graduation from high~~
 7 ~~school. The amount of the supplemental award shall be determined as follows:~~

8	_____	ACT	_____	Annual	_____	ACT	_____	Annual
9	_____	Score	_____	Bonus	_____	Score	_____	Bonus
10	_____	15	_____	\$21	_____	22	_____	\$171
11	_____	16	_____	\$43	_____	23	_____	\$193
12	_____	17	_____	\$64	_____	24	_____	\$214
13	_____	18	_____	\$86	_____	25	_____	\$236
14	_____	19	_____	\$107	_____	26	_____	\$257
15	_____	20	_____	\$129	_____	27	_____	\$279
16	_____	21	_____	\$150	_____	28 or above	_____	\$300

17 ~~_____ Subsequent supplemental awards for eligible high school students graduating~~
 18 ~~before June 30, 1999, shall be determined in accordance with the provisions~~
 19 ~~of paragraph (b) of this subsection.~~

20 (b) ~~{The authority shall commit to provide to each eligible high school student~~
 21 ~~**and each eligible noncertified school student** upon achievement {after June~~
 22 ~~30, 1999, } of an ACT score of at least 15 on the American College Test a~~
 23 ~~supplemental award based on the {eligible high school } student's highest ACT~~
 24 ~~score attained by the date of graduation from a high school **or a noncertified**~~
 25 ~~**high school**. The amount of the supplemental award shall be determined as~~
 26 ~~follows:~~

27 ACT ACT

1	Score	Amount	Score	Amount
2	15	\$36	22	\$286
3	16	\$71	23	\$321
4	17	\$107	24	\$357
5	18	\$143	25	\$393
6	19	\$179	26	\$428
7	20	\$214	27	\$464
8	21	\$250	28 and above	\$500

9 The authority shall review the base amount of the supplemental award~~{~~
 10 ~~beginning with the 2001-2002 academic year and}~~ each academic year~~{~~
 11 ~~thereafter}~~ and may promulgate an administrative regulation to make
 12 adjustments after considering the availability of funds.

13 **(b)** ~~{(c) Beginning with the 2008-2009 academic year, }~~The authority shall
 14 commit to provide a supplemental award for achievement on examinations for
 15 Advanced Placement or International Baccalaureate as defined in KRS
 16 164.002 to an eligible high school student whose family was eligible for free
 17 or reduced-price lunch for any year during high school enrollment, **and**
 18 **beginning with the 2026-2027 academic year, to an eligible noncertified**
 19 **school student who demonstrates financial need in accordance with criteria**
 20 **established by the authority. The amounts for supplemental awards under**
 21 **this paragraph are as follows:{-}**

- 22 1. The supplemental award for AP examination scores are~~{ as follows}~~:
 - 23 a. Two hundred dollars (\$200) for each score of three (3);
 - 24 b. Two hundred fifty dollars (\$250) for each score of four (4); and
 - 25 c. Three hundred dollars (\$300) for each score of five (5); **and{-}**
- 26 2. The supplemental award for IB examination scores are~~{ as follows}~~:
 - 27 a. Two hundred dollars (\$200) for each score of five (5);

1 b. Two hundred fifty dollars (\$250) for each score of six (6); and

2 c. Three hundred dollars (\$300) for each score of seven (7).

3 **(c)** ~~[(d) Beginning with the 2013-2014 academic year,]~~The authority shall
4 commit to provide a supplemental award for achievement on examinations for
5 Cambridge Advanced International as defined in KRS 164.002 to an eligible
6 high school student whose family was eligible for free or reduced-priced
7 lunch for any year during high school enrollment, **and beginning with the**
8 **2026-2027 academic year, to an eligible noncertified school student who**
9 **demonstrates financial need in accordance with criteria established by the**
10 **authority.** The supplemental award for Cambridge Advanced International
11 examination scores are as follows:

- 12 1. Two hundred dollars (\$200) for each score of "e";
13 2. Two hundred fifty dollars (\$250) for each score of "c" or "d"; and
14 3. Three hundred dollars (\$300) for each score of "a*", "a", or "b".

15 **(d)**~~[(e)]~~ The authority shall promulgate administrative regulations **in accordance**
16 **with KRS Chapter 13A** establishing the eligibility criteria and procedures for
17 making a supplemental award to ~~[(Kentucky residents who are citizens,~~
18 ~~nationals, or permanent residents of the United States and who graduate from~~
19 ~~a nonpublic secondary school not certified by the Kentucky Board of~~
20 ~~Education and]~~Kentucky residents who are citizens, nationals, or permanent
21 residents of the United States and who obtain a High School Equivalency
22 Diploma within five (5) years of their high school graduating class~~[(,]~~ and
23 students under subsection (2)**(b)**~~[(c)]~~ of this section who do not attend an
24 accredited high school.

25 ➔Section 3. KRS 164.7881 is amended to read as follows:

- 26 (1) Eligible high school students **and eligible noncertified school students,** who have
27 graduated from **either a** high school **or a noncertified high school,** and eligible

1 postsecondary students who have earned a Kentucky educational excellence
2 scholarship, a Kentucky educational excellence scholarship and a supplemental
3 award, or a supplemental award only pursuant to KRS 164.7879(3)(~~d~~)(e)], shall be
4 eligible to receive the Kentucky educational excellence scholarship, the Kentucky
5 educational excellence scholarship and the supplemental award, or a supplemental
6 award only for a maximum of eight (8) academic terms in an undergraduate or other
7 postsecondary program of study at a participating institution, except as provided in
8 subsections (5) and (6) of this section.

9 (2) To receive the Kentucky educational excellence scholarship, a Kentucky
10 educational excellence scholarship and supplemental award, or a supplemental
11 award only, an eligible high school, eligible noncertified school, or postsecondary
12 student shall:

13 (a) Enroll in and attend a participating institution as a full-time student or a part-
14 time student; and

15 (b) Maintain eligibility as provided in subsection (3) of this section.

16 (3) Eligibility for a Kentucky educational excellence scholarship or a Kentucky
17 educational excellence scholarship and supplemental award shall terminate upon
18 the earlier of:

19 (a) The expiration of five (5) years following the student's graduation from a high
20 school or a noncertified high school, except as provided in subsection (5) or
21 (6) of this section; or

22 (b) The successful completion of an undergraduate or other postsecondary course
23 of study. However, any student who successfully completes the requirements
24 for a degree or certification involving a postsecondary course of study that
25 normally requires less than eight (8) academic terms to complete may
26 continue to receive the benefits of a Kentucky educational excellence
27 scholarship, a Kentucky educational excellence scholarship and supplemental

1 award, or a supplemental award only, for a cumulative total of eight (8)
2 academic terms if the student enrolls as at least a part-time student in a four
3 (4) year program.

4 (4) (a) The maximum award amount shall be determined by the authority and shall
5 be adjusted as provided in this subsection. The award amount ultimately
6 determined to be available to an eligible postsecondary student for an award
7 period shall be delivered by the authority to the participating institution for
8 disbursement to the eligible postsecondary student.

9 (b) The authority shall, by promulgation of administrative regulations, provide for
10 the proportionate reduction of the maximum award amount for an eligible
11 postsecondary student for any academic term in which the student is enrolled
12 on a part-time basis. Each academic term for which any scholarship or
13 supplemental award funds are accepted by an eligible postsecondary student
14 shall count as a full academic term, even if the award amount was reduced to
15 reflect the part-time status of the eligible postsecondary student, except if the
16 eligible postsecondary student interrupts enrollment during the award period
17 for any reason specified in subsection (5) of this section, and the participating
18 institution does not certify a cumulative grade point average for that student at
19 the end of that award period.

20 (c) 1. An eligible postsecondary student who is enrolled full-time in an
21 undergraduate program of study, in the pharmacy program at the
22 University of Kentucky, or in a program of study designated as an
23 equivalent undergraduate program of study by the authority in an
24 administrative regulation, shall receive the maximum award amount for
25 the first award period that the student is enrolled in and attending the
26 program of study.

27 2. To retain the maximum award for the second award period, an eligible

1 postsecondary student shall have at least a 2.5 grade point average at the
2 end of the first award period. If the eligible postsecondary student
3 interrupts enrollment during the award period for any reason specified in
4 subsection (5) of this section, and the participating institution does not
5 certify a cumulative grade point average for that student at the end of
6 that award period, the eligible postsecondary student shall, subject to
7 paragraph (b) of this subsection, retain the maximum award for the
8 award period in which he or she resumes enrollment.

9 3. To retain the maximum award amount for subsequent award periods, an
10 eligible postsecondary student shall have:

11 a. A cumulative grade point average of 3.0 or greater at the end of
12 the prior award period. If the eligible postsecondary student
13 interrupts enrollment during the award period for any reason
14 specified in subsection (5) of this section, and the participating
15 institution does not certify a cumulative grade point average for
16 that student at the end of that award period, the eligible
17 postsecondary student shall, subject to paragraph (b) of this
18 subsection, retain the same award for the award period in which he
19 or she resumes enrollment as he or she received in the award
20 period in which enrollment was interrupted; or

21 b. A cumulative grade point average of 2.5 or greater but less than
22 3.0 at the end of the prior award period and be on track to
23 graduate. If the eligible postsecondary student interrupts
24 enrollment during the award period for any reason specified in
25 subsection (5) of this section, and the participating institution does
26 not certify a cumulative grade point average for that student at the
27 end of that award period, the eligible postsecondary student shall,

1 subject to paragraph (b) of this subsection, retain the same award
2 for the award period in which he or she resumes enrollment as he
3 or she received in the award period in which enrollment was
4 interrupted.

5 4. Any eligible full-time postsecondary student who maintains a
6 cumulative grade point average of less than 3.0 but at least 2.5 but is not
7 on track to graduate at the completion of any award period shall receive
8 a reduction in the maximum award amount equal to fifty percent (50%)
9 of the maximum award amount for the next award period.

10 5. Any eligible postsecondary student who maintains a cumulative grade
11 point average of less than 2.5 at the completion of any award period
12 shall lose his or her award for the next award period.

13 6. a. Each participating institution shall certify to the authority at the
14 close of each award period the cumulative grade point average of
15 each Kentucky educational excellence scholarship recipient
16 enrolled as a full-time or part-time student at the participating
17 institution.

18 b. In addition to reporting the grade point average, ~~beginning with~~
19 ~~the 2010-2011 academic year,~~ each participating institution shall
20 certify to the authority at the close of each award period whether a
21 Kentucky educational excellence scholarship recipient ~~who~~
22 ~~initially enrolled in college in 2009-2010 or thereafter~~ is on track
23 to graduate.

24 7. Any student who loses eligibility through failure to maintain the
25 required cumulative grade point average may regain eligibility in a
26 subsequent award period upon reestablishing at least a 2.5 cumulative
27 grade point average or its equivalent during a subsequent award period,

1 as certified by the participating institution.

2 (5) The expiration of a student's eight (8) academic terms and five (5) year eligibility
3 shall be extended by the authority upon a determination that the student was unable
4 to enroll for or complete an academic term due to any of the following
5 circumstances:

6 (a) A serious and extended illness or injury of the student, certified by an
7 attending physician;

8 (b) The death or serious and extended illness or injury of an immediate family
9 member of the student, certified by an attending physician, which would
10 render the student unable to attend classes;

11 (c) Natural disasters that would render a student unable to attend classes; or

12 (d)~~[1.]~~ Active duty status for the student in the United States Armed Forces or
13 as an officer in the Commissioned Corps of the United States Public Health
14 Service, or active service by the student in the Peace Corps Act or the
15 Americorps, for the total number of years during which the student was on
16 active duty status. The number of months served on active duty status shall be
17 rounded up to the next higher year to determine the maximum length of
18 eligibility extension allowed.}]

19 ~~2. A student whose eligibility expired prior to July 15, 2008, due to the~~
20 ~~three (3) year time limit on eligibility extensions imposed by this~~
21 ~~paragraph prior to July 15, 2008, shall have his or her eligibility~~
22 ~~reinstated for the number of years beyond the three (3) years during~~
23 ~~which he or she was on active duty status. The number of months served~~
24 ~~on active duty status shall be rounded up to the next higher year to~~
25 ~~determine the maximum length of eligibility extension allowed.}]~~

26 (6) An eligible postsecondary student who is enrolled at a participating institution in a
27 five (5) year undergraduate degree program designated in an administrative

1 regulation promulgated by the authority shall be eligible to receive the Kentucky
2 educational excellence scholarship, the Kentucky educational excellence
3 scholarship and the supplemental award, or the supplemental award only for a
4 maximum of ten (10) academic terms. The expiration of an eligible postsecondary
5 student's five (5) year eligibility shall be extended to six (6) years for eligible
6 postsecondary students meeting the requirements of this subsection.

7 (7) Each participating institution shall notify its students of their terms of eligibility.

8 (8) Each eligible high school student who attains a 28 or above on the ACT and a 4.0
9 grade point average for all four (4) years of high school shall be designated as a
10 "Senator Jeff Green Scholar" in honor of the late Senator Jeff Green of Mayfield,
11 Kentucky, First District, and shall be recognized by the high school in a manner
12 consistent with recognition given by the high school to other high levels of
13 academic achievement.

14 ➔Section 4. KRS 164.7884 is amended to read as follows:

15 (1) As used in this section:

16 (a) "Academic year" means July 1 through June 30 of each year;

17 (b) "Apprentice" has the same meaning as in KRS 343.010;

18 (c) "Approved workforce solutions training program" means a local high-demand
19 work sector training program that is approved by the authority and is offered
20 by the Kentucky Community and Technical College System through
21 consultation with representatives of the local workforce development area and
22 the local Kentucky Community and Technical College System campus where
23 the program will be offered;

24 (d) "Eligible college of art and design" means a college that:

25 1. Qualifies as a tax exempt organization pursuant to Section 501(c)(3) of
26 the Internal Revenue Code:

27 2. Is conditionally or unconditionally licensed by the Council on

- 1 Postsecondary Education;
- 2 3. Is a candidate for accreditation by a regional accrediting association
- 3 recognized by the United States Department of Education;
- 4 4. Has its main campus physically located in Kentucky;
- 5 5. Limits its degree program offerings to the area of fine arts; and
- 6 6. Does not qualify as a participating institution as defined in KRS
- 7 164.7874;
- 8 (e) "Eligible student" means an eligible high school student who has graduated
- 9 from high school, an eligible noncertified school student who has graduated
- 10 from a noncertified high school, or a student eligible under KRS
- 11 164.7879(3)(~~d~~)(~~e~~);
- 12 (f) "Proprietary school" means a school that:
- 13 1. Is licensed by the Kentucky Commission on Proprietary Education;
- 14 2. Has operated for at least five (5) years;
- 15 3. Has its headquarters or main campus physically located in Kentucky;
- 16 and
- 17 4. Does not qualify as a participating institution as defined in~~under~~ KRS
- 18 164.7874~~((20))~~;
- 19 (g) "Qualified proprietary school program" means a program offered by a
- 20 proprietary school that is in the field of agriculture as defined in KRS 246.010
- 21 or is in one (1) of Kentucky's top five (5) high-demand work sectors as
- 22 determined by the Kentucky Workforce Innovation Board;
- 23 (h) "Qualified workforce training program" means a program that is in one (1) of
- 24 Kentucky's top five (5) high-demand work sectors as determined by the
- 25 Kentucky Workforce Innovation Board;
- 26 (i) "Registered apprenticeship program" means an apprenticeship program that:
- 27 1. Is established in accordance with the requirements of KRS Chapter 343;

- 1 2. Requires a minimum of two thousand (2,000) hours of on-the-job work
- 2 experience;
- 3 3. Requires a minimum of one hundred forty-four (144) hours of related
- 4 instruction for each year of the apprenticeship; and
- 5 4. Is approved by the Education and Labor Cabinet;
- 6 (j) "Related instruction" has the same meaning as in KRS 343.010; and
- 7 (k) "Sponsor" has the same meaning as in KRS 343.010.
- 8 (2) Notwithstanding KRS 164.7881, an eligible student who earned a KEES award
- 9 shall be eligible for a Kentucky educational excellence scholarship if the student
- 10 meets the requirements of this section and is:
- 11 (a) An apprentice in a registered apprenticeship program;
- 12 (b) Enrolled in a qualified workforce training program that has a current
- 13 articulation agreement for postsecondary credit hours with a participating
- 14 institution;
- 15 (c) Enrolled in a qualified proprietary school program;
- 16 (d) Enrolled in an approved workforce solutions training program; or
- 17 (e) Enrolled in an eligible college of art and design.
- 18 (3) (a) ~~[Beginning with the 2018-2019 academic year,]~~An eligible student enrolled
- 19 in a registered apprenticeship program,~~[or, for the academic year beginning~~
- 20 ~~July 1, 2020, an eligible student enrolled in]~~ a qualified workforce training
- 21 program,~~[or, for the academic year beginning July 1, 2023, an eligible student~~
- 22 ~~enrolled in]~~ a qualified proprietary school program, an approved workforce
- 23 solutions training program, or an eligible college of art and design, may
- 24 receive reimbursement of tuition, books, required tools, and other approved
- 25 expenses required for participation in the program, upon certification by the
- 26 sponsor, school, or college and approval by the authority.
- 27 (b) The reimbursement amount an eligible student may receive in an academic

1 year shall not exceed the student's KEES award maximum.

2 (c) The total reimbursement amount an eligible student may receive under this
3 section shall not exceed the student's KEES award maximum multiplied by
4 four (4).

5 (4) Eligibility for a KEES scholarship under this section shall terminate upon the earlier
6 of:

7 (a) The expiration of five (5) years following the eligible student's graduation
8 from high school or receiving a High School Equivalency Diploma, except as
9 provided in KRS 164.7881(5); or

10 (b) The eligible student's successful completion of the registered apprenticeship
11 program, qualified workforce training program, qualified proprietary school
12 program, or approved workforce solutions training program.

13 (5) The authority shall promulgate administrative regulations **in accordance with KRS**
14 **Chapter 13A** establishing the procedures for making awards under this section in
15 consultation with the ~~the~~ Kentucky Education and Labor Cabinet and the **Cabinet**
16 **for** ~~the~~ Kentucky Economic Development ~~Cabinet~~.